

Postal address:
Box 8114
104 20 Stockholm
Website:
www.imy.se
Email:
imy@imy.se
Phone:
08-657 61 00
1(24)

Coop Sverige AB
Englundavägen 4
17188 Solna

Decision following supervision under the
Data Protection Regulation – Coop
Sverige AB's transfer of
personal data to third countries

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Decision of the Swedish Data Protection Authority

The Swedish Data Protection Authority finds that Coop Sverige Aktiebolag processes personal data in violation of Article 44 of the General Data Protection Regulation (GDPR) by using the tool Google Analytics, provided by Google LLC, on its website www.coop.se since August 14, 2020, and thereby transferring personal data to third countries without fulfilling the conditions set out in Chapter V of the Regulation.

The Swedish Data Protection Authority orders Coop Sverige Aktiebolag, pursuant to Article 58.2 d of the GDPR, to ensure that the company's processing of personal data in connection with Coop Sverige Aktiebolag's use of the tool Google Analytics complies with Article 44 and other provisions of Chapter V. This shall particularly occur by Coop Sverige Aktiebolag ceasing to use the version of the tool Google Analytics that was used on August 14, 2020, unless sufficient protective measures have been taken. The measures must be implemented no later than one month after this decision has become final.

1 Account of the supervisory matter

1.1 Processing

The Swedish Data Protection Authority (IMY) has initiated supervision regarding Coop Sverige AB (hereinafter "Coop" or "the company") due to a complaint. The complaint concerns an alleged violation of the provisions in Chapter V of the GDPR related to the transfer of the complainant's personal data to third countries. The transfer is alleged to have occurred when the complainant visited the company's website, www.coop.se (hereinafter "the company's website" or "the Website") through the tool Google Analytics (hereinafter "the Tool") provided by Google LLC.

The complaint has been forwarded to IMY, as the responsible supervisory authority according to Article 56 of the GDPR. The transfer has occurred from the supervisory authority in the country where the complainant submitted their complaint (Austria) in accordance with the Regulation's provisions on cooperation in cross-border processing.

The processing at IMY has taken place through written correspondence.

1.2 What is stated in the complaint

The complaint essentially states the following.

On August 14, 2020, the complainant visited Coop's website. During the visit, the complainant was logged into their Google account, which is linked to the complainant's email address. The company

had implemented a Javascript code for Google's services, including Google Analytics, on its website. In accordance with point 5.1.1 b of the terms for Google's processing of personal data for Google's advertising products and also Google's terms for processing "the New Order Data Processing Conditions for Google Advertising Products," Google processes personal data on behalf of the data controller (i.e., the company).

Google LLC should therefore be classified as the company's data processor according to the aforementioned terms.

During the complainant's visit to the company's website, the complainant's personal data was processed by Coop, at least the complainant's IP address and data collected through cookies. Some of the data collected was transferred directly to Google. In accordance with point 10 of the terms regarding the processing of personal data for Google's advertising products, Coop has consented to Google processing personal data about the complainant in the USA. Such transfer of data requires legal support in accordance with Chapter V of the GDPR.

According to the Court of Justice of the European Union's ruling in Facebook Ireland and Schrems (Schrems II), the company could no longer rely on a decision regarding an adequate level of protection for the transfer of data to the USA under Article 45 of the GDPR. The company should not base the transfer of data on standard contractual clauses under Article 46.2 c of the GDPR if the recipient country does not ensure an adequate level of protection with regard to Union law for the personal data being transferred.

1.3 What Coop has stated

Coop Sverige AB has essentially stated the following.

1.3.1 Who has implemented the Tool and for what purpose, etc.

Coop has made the decision to implement the Tool on the Website, which has been done by embedding the code for the tool on the Website. The Tool is still active. The company is not established in any other member state than Sweden and has not made such a decision for any other European website.

The purpose of Coop's use of the Tool is to fulfill the objective of developing and improving Coop's operations, products, and services. The Tool is used, for example, to analyze and evaluate (i) how registered users use coop.se, (ii) Coop's customer personalization on coop.se, and (iii) Coop's advertising campaigns. Based on the insights provided by the Tool, Coop can make decisions regarding actions that improve and optimize Coop's products, services (e.g., features offered on coop.se as well as their placement or personalization on coop.se), and marketing or decide to develop new products or services. For this purpose, it is necessary to retain relevant unique identifiers for the analyses conducted to create reliable and verifiable results.

The Tool is used to create analyses and reports that facilitate decision-making related to the objectives 1) to provide a personalized experience in Coop's digital channels and 2) marketing and communication in Coop's and third parties' digital channels.

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Coop's purpose with the Tool can also be fulfilled by implementing a so-called server-side container, which means that the visitor's IP address will not be sent to the Tool (see below). Coop does not need IP addresses as identifiers to fulfill the purpose of the Tool. The purpose of the Tool is to create reports for decision-making to develop and improve Coop's operations, products, and services. Examples of information needed in these reports may include which exposures lead to a purchase in order to evaluate their effectiveness, e.g., product views, recipe views, or campaigns. In this context, it is therefore the measurement, not the IP address, that is crucial for whether the purpose of the Tool can be fulfilled.

Coop's customers are located in the Swedish market, and Coop only targets the Swedish market. Practical reasons and the prohibition regarding discrimination against consumers, and in some cases also traders, according to the Geo-blocking Regulation³, mean that there is no limitation on who can

visit Coop's website. Coop does not specifically analyze from which countries traffic to the website originates.

1.3.2 Recipients of the data

In the context of Coop's use of the Tool on the Website, personal data is disclosed to a number of actors, all of whom are data processors or sub-processors for Coop, including Google LLC, Google Ireland Ltd, and their sub-processors.

1.3.3 The data processed in the Tool and what constitutes personal data

In the context of Coop's use of the Tool on the Website, the company and its data processors (the Recipients) process the following data:

1. User behavior on the website based on values submitted via variables on the website (e.g., filterCombination, Page title, Referrer, or storeName).
2. Device information (e.g., flashVersion, javaEnabled, language, or color choice on the screen).
3. Customer status (i.e., whether the user visits Coop's website in logged-in or logged-out mode or as a business customer).
4. Online identifiers (e.g., IP address, userID, transactionID, clientID, gclid, dclid, or Device ID).
5. Transaction data based on values submitted via variables on the website (such as numberOfCopies, Transaction - dimension50 (boughtRecipe), Transaction - dimension7 (deliveryMethod), orderID, or deliveryTime).

1.3.4 Categories of individuals affected by the processing

The categories of individuals affected by the processing are visitors, private customers (non-member with an account), business customers, and members of Coop Member. The Tool is not set up and is not used to process special categories of personal data or personal data about particularly vulnerable individuals.

3 Regulation (EU) 2018/302 of the European Parliament and of the Council of 28 February 2018 on measures against unjustified geo-blocking and other forms of discrimination based on customers' nationality, residence, or establishment in the internal market.

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1.3.5 When the code for the Tool is executed and Recipients are granted access

When a user has made their consent choices, the user's personal data, to varying extents, will be sent to the Tool. The content is integrated and executed after the conditions in Coop's consent manager are fulfilled.

1.3.6 How long the personal data being processed is stored

The personal data processed in the Tool is stored for a maximum of 38 months and is then deleted.

1.3.7 In which countries the personal data is processed

The personal data is processed, among other places, in the USA.

1.3.8 Coop's relationship with Google LLC

Coop purchases the license for the Tool through a reseller that acts as Coop's data processor. Coop and the data processor have entered into a data processing agreement that governs the setup and administration of the Tool. The data processor independently manages all dealings in relation to Google. For example, the data processor handles the entire setup of the Tool, compensation for the service, and contacts with Google regarding support. In other words, Google acts solely on instructions from Coop's data processor.

Furthermore, Google applies contractual terms between itself and the reseller that govern Google's processing of personal data as a data processor in relation to the reseller, whereby the reseller is Coop's data processor. Thus, Google becomes Coop's sub-processor. This view of the division of

roles is consistent with the views of Coop's data processor and Google. In addition, the settings that allow the use of personal data in the Tool for Google's own purposes are disabled.

In light of (i) Coop's data processor acting in accordance with Coop's instructions, (ii) the structure of the agreements and how the involved parties view the division of roles, and (iii) that data sharing for Google's own purposes is disabled, Coop's assessment is that Google constitutes a sub-processor to Coop related to the processing of personal data in the Tool.

1.3.9 Ensuring that processing does not occur for the Recipients' own purposes

Coop discloses personal data to its data processors. Coop has entered into data processing agreements with these. The agreements contain clauses regarding Coop's right to audit, through which Coop can verify that the data processor does not process personal data for its own purposes or for the purposes of third parties.

As part of its work with the General Data Protection Regulation, Coop applies a routine to ensure compliance. The routine includes an annual cycle aimed at securing good compliance over time. The annual cycle is divided into four parts, with the monitoring of processor relationships included in the third part. Within the framework of the monitoring work according to the annual cycle, there is an opportunity to ensure that data processors only process personal data on behalf of Coop.

In connection with the work regarding the implementation of the consent manager, additional measures have also been taken to ensure that Coop does not allow Recipients to process personal data belonging to Coop's visitors, customers, and members for their own purposes.

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its own purposes. There are procedures that state that each responsible employee must ensure that no sharing of personal data occurs through solutions in the service.

1.3.10 Description of Coop's Use of the Tool

Coop sends various identifiers via the measurement set up on the company's website. Common to all identifiers is that they are unique to the registered individuals' interactions related to the website www.coop.se. In other words, a registered individual is not assigned the same identifier that applies to other websites than Coop's website.

The example below describes a report where Coop wants to understand which products are popular to purchase online and how these have been exposed to the customer on Coop's website. When the customer completes their purchase in Coop's e-commerce, the following information is sent to the Tool (in the format of variable, description, and example of value):

- Id - Product ID - 3600542020855
- Variant - Size of the package (e.g., 200 g etc.) - undefined
- Price - Product price - 26.5
- List - The products on the site are presented in a product list that can have different names, e.g., product search, Site search, Search dropdown - product search
- listPosition - The position of the list among other product lists (from 0 and upwards) - 0
- position - The position of the product in the product list (from 0 and upwards) - 0
- name - Product name - Balsam Goodbye Damage
-

brand - Brand - Fructis

•

category - Product category area - Beauty & Hygiene - Hair Care - Conditioner

The identifiers that are transmitted are as follows:

1. clientID - used to determine whether a registered individual is new or returning. New clientIDs are generated if a registered individual clears their cookies and visits the website again.
2. userID - generated for registered users with a login account on coop.se and used to determine whether a registered individual has a login account or not.
3. gclid and dclid - generated for each unique ad click. The purpose is to attribute a click to a specific ad to, for example, obtain aggregated information on how many times the ad has been displayed or how many have interacted with it.
4. transactionID - generated in connection with a purchase on coop.se and corresponds to an order number.

Based on the information provided above, Coop can, among other things, draw conclusions about popular products that lead to purchases, how the customer journey started, and what type of registered individual made the purchase (e.g., new or returning member/customer or member/customer with a login account). These conclusions do not depend on whether the registered individuals' public IP addresses are sent to the Tool, and the purpose can thus be fulfilled regardless of whether public IP addresses are sent or not.

In light of the implementation of the server-side container, Coop also wishes to clarify that registered individuals' IP addresses are only processed through the following treatments: 1) collection on the company's website, 2) transfer to the server-side container, and 3) conversion of the unique IP addresses to a generic IP address for

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the server-side container. Collection, transfer, and conversion occur in real-time and no public IP addresses are stored.

1.3.11 Own controls of transfers affected by the Schrems II ruling

In light of the Schrems II ruling, Coop has undertaken a review of its transfers to third countries. In the autumn of 2021, Coop also conducted an audit of the Tool, where Coop was able to ascertain that international data transfers occur through the use of the Tool. As part of this work, ongoing measures have been taken to further enhance the privacy protection related to the data subjects whose personal data is affected.

1.3.12 Transfer tools according to Chapter V of the Data Protection Regulation

Transfers to third countries are carried out based on the EU Commission's standard contractual clauses (data processors), which are incorporated in the agreement made between Google and Coop's data processor. According to the agreement, Coop's data processor acts as the exporter of the personal data to the Tool.

Coop supports the data transfers to the USA based on the standard contractual clauses for the transfer of personal data to data processors in third countries. The standard contractual clauses have, in this case, been entered into between Google LLC and the company's data processor. In this context, it should be noted that Google provides standardized services and does not offer its customers the opportunity to negotiate the terms of its services. Since these are terms that are not subject to negotiation, there are no signed copies available. Instead, Coop has attached the data processing terms in which the standard contractual clauses have been incorporated and which apply in accordance with the agreement made by Coop's data processor.

Coop takes measures to ensure that the existing standard contractual clauses are always updated according to the EU Commission's latest version of the standard contractual clauses.

1.3.13 Control of obstacles to compliance in third country legislation

Control of obstacles in third country legislation is part of Coop's work to review its transfers to third countries. However, Coop has noted the criticism that the EU Court has directed at American legislation and takes this into account when choosing supplementary protective measures.

1.3.14 Additional protective measures taken beyond those implemented by Google

The implementation of additional protective measures is part of Coop's work to review its transfers to third countries. According to information from Google, several security measures are provided that Google assesses constitute such additional protective measures that can be taken in conjunction with the standard contractual clauses.

Coop has also undertaken work to establish a so-called server-side container, in order to increase control over how data is sent to the Tool.

Coop believes that Google's contractual and organizational measures can be considered to minimize the actual risk of the disclosure of personal data to third countries ultimately occurring. However, Google's Transparency Report, Global requests for user information, indicates that Google continuously receives inquiries from U.S. authorities regarding access to personal data stored by Google.

Coop's assessment is that the real risk of data being disclosed to U.S. intelligence services is low. However, it cannot be eliminated by either the measures taken by Google or those taken by Coop.

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Furthermore, Coop assesses that the additional measures taken to minimize surveillance possibilities also strengthen Coop's customers' freedoms and rights by ensuring that they cannot be identified through the data that is transmitted.

In summary, through these measures, only one generic IP address is transmitted to the Tool, regardless of what the registered unique IP address is. Coop has also activated the function in the Tool for so-called IP anonymization, but in light of the server-side container, this measure is considered redundant by the company.

1.3.14.1 General Information about Server-Side Container

A server-side container is generally implemented to either improve 1) the website's performance or 2) security. Regarding performance, fewer tags can be used related to the measurement set up on the Website, which means less code on the client side and, for example, that the website can load faster. Regarding security, visitors' data can be better protected, and the website owner retains greater control over the data collected and distributed in an environment controlled by the website owner. When data is first sent to a cloud-based solution, it can be processed and redistributed with tags that the website owner controls.

1.3.14.2 Coop's Implementation of Server-Side Container

The purpose of the server-side container that Coop has implemented is to enhance security related to the data being sent. More specifically, the aim is to protect the personal privacy of the registered individuals in a good and secure manner. The server-side container acts as a proxy between the registered individuals' browsers and the Tool, where Coop has chosen to implement the server-side container in a way that ensures the registered individuals' public IP address is never transmitted to the Tool.

The implementation can be described as follows. A registered individual visits the website www.coop.se in their browser. The Google Analytics script is downloaded from the server-side container instead of being downloaded directly from Google Analytics servers. This results in the registered individual's IP address, as well as information about user behavior, device information, customer status, online identifiers, and transaction data (according to points 1–5 above in section 1.3.10), being transmitted to the server-side container instead of directly to Google Analytics. Once the Google Analytics script has been downloaded from the server-side container, a new request is made

from the server-side container to the Google Analytics servers. Since the request is made from the server-side container, there is no transmission of the registered individual's public IP address to Google Analytics. Coop has configured the server-side container in such a way that all data mentioned above, except for the registered individual's public IP address, passes through the server-side container to Google Analytics. Google Analytics receives the data sent from the server-side container, and the data (information) that has been sent is populated in reports through the measurement set up on the website www.coop.se.

The processes that occur through the aforementioned – i.e., receiving, converting, and forwarding the request – take place in the memory of the server-side container. This means that all processing occurs in real-time and that no data is stored permanently. In other words, registered individuals' public IP addresses are not stored in the server-side container, nor are they exposed to Google Analytics servers. All communication from the browser, via the server-side container, to the Tool is also encrypted.

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This process is irreversible as the information is not stored and the conversion is not based on a one-to-one relationship that allows the use of a "key" to restore the public IP addresses.

Coop has activated Google's IP anonymization feature. This means that the IP address sent to the Tool is truncated. This is done by Google removing part of the IP address before the IP address is stored on disk. For an IPv4 address, the last octet of the address is replaced with a zero. For an IPv6 address, the last 80 bits are replaced with zeros. This action is irreversible, but since this action is performed by Google in the Tool, Coop has also chosen to implement a server-side container.

In Coop's case, the IP anonymization feature is activated and applied to the generic IP address sent via the server-side container. In this context, however, the feature is redundant considering that the server-side container prevents the registered users' public IP addresses from being sent to the Tool. Coop's assessment is that the server-side container as a measure is a sufficient protective measure, but that it does not hurt to also have the IP anonymization feature activated in the Tool.

1.4 What Google LLC has stated

IMY has added to the case a statement from Google LLC (Google) dated April 9, 2021, which Google submitted to the Austrian supervisory authority. The statement answers questions that IMY and a number of supervisory authorities have posed to Google regarding the partially joint handling of similar complaints that have been submitted to these authorities.

Coop has been given the opportunity to comment on Google LLC's statement. The following is stated in Google LLC's statement regarding the Tool.

A JavaScript code is included on a webpage. When a user visits (calls) a webpage, the code triggers a download of a JavaScript file. Thereafter, the tracking operation for the Tool is performed, which consists of collecting information related to the request in various ways and sending the information to the Tool's servers.

A website administrator who has integrated the Tool on their website can send instructions to Google for processing the data collected. These instructions are transmitted via the so-called tag manager that manages the tracking code that the website administrator has integrated into their website and through the settings of the tag manager. The one who has integrated the Tool can make various settings, for example regarding storage time. The Tool also allows the integrator to monitor and maintain the stability of their website, for example by keeping informed about events such as peaks in visitor traffic or lack of traffic. The Tool also enables a website administrator to measure and optimize the effectiveness of advertising campaigns conducted using other tools from Google.

In this context, the Tool collects the visitor's HTTP requests and information about, among other things, the visitor's browser and operating system. According to Google, an HTTP request for any page contains information about the browser and the device making the request, such as domain name, and

information about the browser, such as type, referrer, and language. The Tool stores and reads cookies in the visitor's browser to evaluate the visitor's session and other information about the request. Through these cookies, the Tool enables the identification of unique users (UUID) across browsing sessions, but the Tool cannot identify unique users across different browsers or devices. If a website owner's website has its own authentication system

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the website owner can use the ID function to more accurately identify a user across all devices and browsers they use to access the website.

When the information is collected, it is transferred to the Tool's servers. All data collected via the Tool is stored in the USA.

Google has implemented, among other things, the contractual, organizational, and technical safeguards listed below to regulate the transfer of data within the framework of the Tool.

Google has taken contractual and organizational safeguards such as ensuring that the company always conducts a thorough review of whether a request for access from government authorities regarding user data can be fulfilled. It is lawyers/specially trained personnel who carry out these reviews and examine whether such a request is consistent with applicable laws and Google's guidelines. The registered individuals are informed about the disclosure, unless prohibited by law or if it would negatively impact an emergency situation. Google has also published a policy on the company's website regarding how such requests for access from government authorities concerning user data should be handled.

Google has implemented technical safeguards such as protecting personal data from eavesdropping during data transmission in the Tool. By default, it uses HTTP Strict Transport Security (HSTS), which instructs browsers to use an encryption protocol for all communication between end users, websites, and the Tool's servers. Such encryption prevents intruders from passively eavesdropping on communication between websites and users.

Google also employs an encryption technique to protect personal data known as "data at rest" in data centers, where user data is stored on a disk or backup media to prevent unauthorized access to the data.

In addition to the above measures, website owners can use IP anonymization by utilizing the settings provided by the Tool to limit Google's use of personal data. Such settings primarily include enabling IP anonymization in the Tool's code, which means that IP addresses are truncated and contribute to data minimization. If the IP anonymization service is fully utilized, the anonymization of the IP address occurs almost immediately after the request has been received.

Google also restricts access to the data from the Tool through access control and requires all personnel to undergo training regarding information security.

2. Justification of the decision

2.1 Framework for the review

The Swedish Data Protection Authority (IMY) has, based on the complaint in the case, only reviewed whether Coop transfers personal data to the third country USA within the framework of the Tool and whether the company has legal support for this under Chapter V of the General Data Protection Regulation. The supervision does not cover whether the company's processing of personal data is otherwise compliant with the General Data Protection Regulation.

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2.2 This concerns the processing of personal data

2.2.1 Applicable provisions, etc.

For the General Data Protection Regulation (GDPR) to be applicable, personal data must be processed.

According to Article 1.2, the GDPR aims to protect the fundamental rights and freedoms of natural persons, particularly their right to the protection of personal data. According to Article 4.1 of the Regulation, personal data is defined as "any information relating to an identified or identifiable natural person (hereinafter referred to as a data subject), where an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person." To determine whether a natural person is identifiable, all means that may reasonably be used, either by the data controller or by another person, to identify the natural person directly or indirectly should be considered (Recital 26 of the GDPR).

The concept of personal data can encompass all information, both objective and subjective, provided that it "relates to" a specific person, which it does if it is linked to the person due to its content, purpose, or effect. The term "indirect" in Article 4.1 of the GDPR indicates that it is not necessary for the information itself to enable the identification of the data subject for it to be considered personal data. Furthermore, Recital 26 of the GDPR states that to determine whether a natural person is identifiable, all means, such as "singling out," that may reasonably be used, either by the data controller or by another person, to identify the natural person directly or indirectly should be taken into account. To establish whether means can reasonably be expected to be used to identify the natural person, all objective factors, such as costs and time required for identification, should be considered, taking into account the available technology at the time of processing. Article 4.5 of the Regulation indicates that pseudonymization refers to the processing of personal data in a manner that the personal data can no longer be attributed to a specific data subject without the use of additional information, provided that such additional information is kept separately and is subject to technical and organizational measures that ensure that the personal data is not attributed to an identified or identifiable natural person. So-called "online identifiers" (sometimes referred to as "network identifiers") – e.g., IP addresses or information stored in cookies – can be used to identify a user, especially when combined with other similar types of information. According to Recital 30 of the GDPR, natural persons can be linked to online identifiers provided by their devices, such as IP addresses, cookies, or other identifiers. This can leave traces that, particularly in combination with unique identifiers and other data collected, can be used to create profiles of natural persons and identify them. The Court of Justice of the European Union, in the Breyer judgment, established that a person is not considered identifiable through a certain piece of information if the risk of identification is practically negligible, which it is if

4 Court of Justice of the European Union judgment Nowak, C-434/16, EU:C:2017:994, paragraphs 34–35.

5 Court of Justice of the European Union judgment Breyer, C-582/14, EU:C:2016:779, paragraph 41. Page 12 of 24

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Identification of the individual in question is prohibited by law or impossible to carry out in practice.⁶ However, the Court of Justice of the European Union has established in the judgment M.I.C.M. from 2021 and in the judgment Breyer that dynamic IP addresses constitute personal data in relation to the entity processing them, when that entity also has a legal possibility to identify the holders of the internet connections using additional information available from third parties.⁷

2.2.2 Assessment by the Swedish Data Protection Authority

To determine whether the data processed through the Tool constitutes personal data, the Swedish

Data Protection Authority (IMY) will assess whether Google or Coop, through the implementation of the Tool, can identify individuals, e.g., the complainant, when visiting the Website or whether the risk of this is negligible.⁸

IMY believes that the data being processed constitutes personal data for the following reasons.

The investigation shows that Coop implemented the Tool by inserting a JavaScript code (a tag), provided by Google, into the source code of the Website. While the page loads in the visitor's browser, the JavaScript code is loaded from Google LLC's servers and executed locally in the visitor's browser. A cookie is simultaneously set in the visitor's browser and saved on the computer. The cookie contains a text file that collects information about the visitor's navigation on the Website. Among other things, a unique identifier is established in the value of the cookie, and this unique identifier is generated and managed by Google.

When the complainant visited the Website, or a subpage of the Website, the following information was transmitted via the JavaScript code from the complainant's browser to Google LLC's servers:

1. Unique identifier(s) that identified the browser or device used to visit the Website as well as a unique identifier that identified Coop's (i.e., the company's account ID for Google Analytics).
2. Web address (URL) and HTML title of the website and webpage that the complainant visited.
3. Information about the browser, operating system, screen resolution, language settings, as well as the date and time of access to the Website.
4. The generic IP address created by Coop's implementation of a so-called server-side container.

During the complainant's visit, the aforementioned identifiers (according to point 1 above) were set in cookies named “_gads,” “_ga,” and “_gid” and were subsequently transmitted to Google LLC. These identifiers have been created for the purpose of distinguishing individual visitors, such as the complainant. The unique identifiers thus make the visitors to the Website identifiable. Even if such unique identifiers (according to point 1 above) in themselves would not be considered to make individuals identifiable, it must be taken into account that these unique identifiers in the current case can be combined with additional elements (according to points 2–4 above) and that it is possible to draw conclusions regarding information (according to points

6 Judgment of the Court of Justice of the European Union Breyer, C-582/14, EU:C:2016:779, paragraphs 45–46.

7 Judgment of the Court of Justice of the European Union M.I.C.M, C-597/19, EU:C:2021:492, paragraphs 102–104 and judgment Breyer, C-582/14, EU:C:2016:779, paragraph 49.

8 See the Administrative Court of Appeal in Gothenburg's judgment on November 11, 2021, in case no. 2232-21, agreeing with the assessment of the lower court.

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2–4 above) which means that the data constitutes personal data, regardless of whether the IP address has not been fully transmitted.

When data (according to points 1–4 above) is combined, individual visitors to the Website become even more distinguishable. It is thus possible to identify individual visitors to the Website. This is sufficient in itself for it to be considered personal data. Knowledge of the actual visitor's name or physical address is not required, as the distinction (through the term "singling out" in Recital 26 of the General Data Protection Regulation, "singling out" in the English version) is sufficient to make the visitor indirectly identifiable. It is also not required that Google or Coop intends to identify the complainant; the mere possibility of doing so is sufficient to determine whether it is possible to identify a visitor. Objective means that can reasonably be used either by the data controller or by someone else are all means that can reasonably be used for the purpose of identifying the complainant. Examples of objective means that can reasonably be used include access to additional information from a third party that would make it possible to identify the complainant, taking into account both the available technology at the time of identification and the cost (time required) for the identification.

The Swedish Data Protection Authority notes that the Court of Justice of the European Union, through the judgment M.I.C.M. and the judgment Breyer, has established that dynamic IP addresses constitute personal data in relation to the entity processing them, when that entity also has a legal possibility to identify the holders of the internet connections with the help of additional information that third parties possess.⁹ IP addresses do not lose their character as personal data solely because the means of identification lie with a third party. The Breyer judgment and the M.I.C.M. judgment should be interpreted based on what is actually stated in the judgments, i.e., that if there is a legal possibility to access supplementary information for the purpose of identifying the complainant, it is objectively clear that there is a "means that can reasonably be used" to identify the complainant. According to the Swedish Data Protection Authority, the judgments should not be read in the opposite way, in the sense that it must be demonstrated that there is a legally regulated possibility to access data that can link IP addresses to physical persons for the IP addresses to be considered personal data. An interpretation of the concept of personal data that requires a legal possibility to link such data to a physical person would, according to the Swedish Data Protection Authority, imply a significant limitation of the regulation's scope of protection and open up possibilities to circumvent the protection in the regulation. This interpretation would, among other things, contradict the purpose of the regulation according to Article 1.2 of the General Data Protection Regulation. The Breyer judgment was decided under the previously applicable Directive 95/46, and the concept of "singling out" according to Recital 26 of the current regulation (that knowledge of the actual visitor's name or physical address is not required, as the distinction in itself is sufficient to make the visitor identifiable) was not stated in the previously applicable directive as a method for identifying personal data.

In this context, other data (according to points 1–3 above) that the IP address can be combined with to enable identification also comes into play. Coop's action regarding the generic IP address created by Coop's implementation of a so-called server-side container prevents the transmission of the IP address to a third country; however, identification at Coop is still made possible, which in itself is sufficient for the data together to constitute personal data.

9 Judgment of the Court of Justice of the European Union M.I.C.M, C-597/19, EU:C:2021:492, paragraphs 102–104 and judgment Breyer, C-582/14 EU:C:2016:779, paragraph 49.

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IMY notes that there may also be reasons to compare IP addresses (including generic ones) with pseudonymized personal data. Pseudonymization of personal data means, according to Article 4.5 of the General Data Protection Regulation (GDPR), that the data – similar to dynamic IP addresses – cannot be directly attributed to a specific data subject without the use of additional information. According to Recital 26 of the GDPR, such data should be considered as data concerning an identifiable natural person.

A narrower interpretation of the concept of personal data would, according to IMY, undermine the scope of the right to protection of personal data, which is guaranteed in Article 8 of the Charter of Fundamental Rights of the European Union, as it would allow data controllers to specifically identify individuals along with personal data (e.g., when they visit a certain website) while denying individuals the right to protection against the dissemination of such data about them. Such an interpretation would undermine the level of protection for individuals and would not be compatible with the broad scope that data protection regulations have been given in the case law of the Court of Justice of the European Union.¹⁰

Furthermore, the complainant's personal data was processed on August 14, 2020, as the complainant was logged into their Google account during the visit to the Website, thereby allowing conclusions to be drawn about the individual based on their registration with Google. Google's statement indicates that the implementation of the Tool on a website allows for the receipt of information that a user of a Google account (i.e., a registered user) has visited the website in question. Google does state that

certain conditions must be met for Google to receive such information, for example, that the user (the complainant) has not disabled processing for and display of personalized ads. Since the complainant was logged into their Google account during the visit to the Website, Google may still have had the opportunity to receive information about the logged-in user's visit to the Website. The fact that it is not stated in the complaint that no personalized ads were displayed does not mean that Google cannot obtain information about the logged-in user's visit to the Website.

IMY finds, in light of the unique identifiers that can identify the browser or device, the possibility of tracing the individual through their Google account, the generic IP addresses, and the ability to combine these with additional information, that Coop's use of the Tool on a webpage involves the processing of personal data.

2.3 Coop is the data controller for the processing

The data controller is, among other things, a legal entity that alone or jointly with others determines the purposes and means of the processing of personal data (Article 4.7 of the GDPR). The data processor is, among other things, a legal entity that processes personal data on behalf of the data controller (Article 4.8 of the GDPR).

The responses provided by Coop indicate that the company has made the decision to implement the Tool on the Website. Furthermore, it is clear that Coop's purpose in this has been to enable the company to analyze how the Website is used, in particular to be able to track the use of the website over time.

IMY finds that Coop, by deciding to implement the Tool on the website for the aforementioned purpose, has established the purposes and means of the collection and the

10 See, for example, the Court of Justice of the European Union's judgment in *Latvijas Republikas Saeima* (Points de pénalité), C-439/19, EU:C:2021:504, paragraph 61, judgment in *Nowak*, C-434/16, EU:C:2017:994, paragraph 33, and judgment in *Rijkeboer*, C-553/07, EU:C:2009:293, paragraph 59.
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following the transfer of these personal data. Coop is therefore the data controller for this processing.

2.4 Transfer of personal data to third countries

The investigation shows that the data collected via the Tool is stored by Google LLC in the USA. Thus, the personal data collected via the Tool is transferred to the USA.

The question is therefore whether Coop's transfer of personal data to the USA is compliant with Article 44 of the General Data Protection Regulation and is supported by a transfer tool in Chapter V.

2.4.1 Applicable provisions, etc.

According to Article 44 of the General Data Protection Regulation, titled "General principle for the transfer of data," the transfer of personal data that is being processed or is intended to be processed after being transferred to a third country – i.e., a country outside the EU/EEA – may only take place provided that the data controller and the data processor, subject to other provisions of the General Data Protection Regulation, meet the conditions in Chapter V. All provisions in the aforementioned chapter must be applied to ensure that the level of protection of natural persons guaranteed by the General Data Protection Regulation is not undermined.

Chapter V of the General Data Protection Regulation contains tools that can be used for transfers to third countries to ensure a level of protection that is essentially equivalent to that guaranteed within the EU/EEA. This may, for example, include transfers based on a decision of adequate protection level (Article 45) and transfers subject to appropriate safeguards (Article 46). Additionally, there are exceptions for specific situations (Article 49).

The Court of Justice of the European Union has invalidated the decision on adequate protection level that previously applied regarding the USA in the ruling *Schrems II*. Since a decision on adequate protection level has been lacking since July 2020, transfers to the USA cannot be based on Article 45. Article 46.1 stipulates, among other things, that in the absence of a decision in accordance with Article

45.3, a data controller or a data processor may only transfer personal data to a third country after having implemented appropriate safeguards, and on the condition that statutory rights for data subjects and effective remedies for data subjects are available. Article 46.2(c) states that such appropriate safeguards may take the form of standard data protection clauses adopted by the Commission in accordance with the review procedure referred to in Article 93.2.

In the ruling *Schrems II*, the Court of Justice of the European Union did not invalidate standard contractual clauses as transfer tools. However, the Court noted that they are not binding on authorities in the third country. The Court of Justice of the European Union stated that “[e]ven if there are situations where the recipient of such a transfer, depending on the legal situation and prevailing practices in the relevant third country, can guarantee the necessary protection of data solely on the basis of the standard data protection clauses, there are other situations in which the provisions of these clauses cannot be a sufficient means to effectively ensure the protection of the personal data transferred to the relevant third country in practice.” According to the Court of Justice of the European Union, this is “among other things

11 Commission Implementing Decision (EU) 2016/1250 of July 12, 2016, pursuant to the European Parliament and Council Directive 95/46/EC on whether an adequate level of protection is ensured by the Privacy Shield framework between the European Union and the United States.

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the case when the legislation in that third country allows the authorities in that third country to intervene in the rights of the registered individuals regarding this data.”¹²

The reason the Court of Justice of the European Union invalidated the decision on adequate protection level with the USA was due to how American intelligence services can access personal data.

According to the court, the conclusion of standard contractual clauses cannot in itself ensure a level of protection required under Article 44 of the General Data Protection Regulation, as the guarantees specified therein do not apply when such authorities request access. The Court of Justice therefore stated the following:

“It follows that the standardized data protection provisions adopted by the Commission pursuant to Article 46.2 c of the same regulation are intended solely to provide the data controllers or their data processors established in the Union with contractual safeguards that are applied uniformly in all third countries and thus independently of the level of protection ensured in each of those countries. Since these standardized data protection provisions, by their nature, cannot lead to safeguards that go beyond a contractual obligation to ensure that the level of protection required under Union law is observed, it may be necessary, depending on the situation prevailing in a particular third country, for the data controller to take additional measures to ensure that the level of protection is observed.”¹³

In the European Data Protection Board's (EDPB) recommendations on the consequences of the ruling¹⁴, it is clarified that if the assessment of legislation and practice in the third country indicates that the protection that the transfer tool is supposed to guarantee cannot be maintained in practice, the exporter, within the framework of its transfer, must generally either suspend the transfer or take appropriate additional protective measures. The EDPB states that “additional measures can only be considered effective in the sense referred to in the Court of Justice's ruling ‘*Schrems II*’ if and to the extent that they – alone or in combination – address the specific shortcomings identified in the assessment of the situation in the third country regarding its laws and practices applicable to the transfer.”¹⁵

From the EDPB's recommendations, it appears that such additional protective measures can be divided into three categories: contractual, organizational, and technical.¹⁶

Regarding contractual measures, the EDPB states that such measures “[...] can complement and enhance the safeguards provided by the transfer tool and relevant legislation in the third country [...]. Given that the contractual measures are of such a nature that they generally cannot bind the

authorities in the third country since they are not parties to the agreement, these measures often need to be combined with other technical and organizational measures to provide the level of data protection required [...]”.¹⁷

Regarding organizational measures, the EDPB emphasizes “[t]hat choosing and implementing one or more of these measures will not necessarily and systematically ensure that [a] transfer meets the fundamental equivalence standard that

12 Paragraph 125-126.

13 Paragraph 133, IMY's.

14 EDPB, Recommendations 01/2020 on measures that supplement transfer tools to ensure compliance with the EU level of protection of personal data, Version 2.0, adopted on June 18, 2021 (hereinafter “EDPB Recommendations 01/2020”).

15 EDPB Recommendations 01/2020, paragraph 75. IMY's translation.

16 EDPB Recommendations 01/2020, paragraph 52.

17 EDPB Recommendations 01/2020, paragraph 99; IMY's translation.

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is required under EU legislation. Depending on the specific circumstances surrounding the transfer and the assessment made of the third country's legislation, organizational measures are required to complement contractual and/or technical measures to ensure a level of protection for personal data that is essentially equivalent to that guaranteed within the EU/EEA.”¹⁸

Regarding technical measures, the EDPB points out that “these measures will be particularly necessary when the legislation of that country imposes obligations on the importer that conflict with the guarantees in Article 46 of the data protection regulation's transfer tools and which may particularly infringe upon the contractual guarantee of essentially equivalent protection against access by authorities in that third country to these data.”¹⁹ The EDPB states that “the measures specified [in the Recommendations] are intended to ensure that access to the transferred data by public authorities in third countries does not infringe upon the appropriateness of the protective measures in Article 46 of the data protection regulation's transfer tools. These measures would be necessary to guarantee an essentially equivalent level of protection as that guaranteed within the EU/EEA, even if access by public authorities is compatible with the legislation in the importer's country, where such access in practice goes beyond what is necessary and proportionate in a democratic society. The purpose of these measures is to prevent potentially unlawful access by preventing authorities from identifying the data subjects, drawing conclusions about them, identifying them in another context, or linking the transferred data to other datasets that may include online identifiers provided by the entities, applications, tools, and protocols used by data subjects in other contexts.”²⁰

2.4.2 Assessment of the Swedish Data Protection Authority

2.4.2.1 Applicable Transfer Tool

The investigation shows that Coop and Google have entered into standardized data protection clauses (standard contractual clauses) in the sense referred to in Article 46 for the transfer of personal data to the USA. These clauses are in line with those published by the European Commission's decision of June 4, 2021 (2021/914/EU) and thus constitute a transfer tool under Chapter V of the data protection regulation.

2.4.2.2. Legislation and Situation in the Third Country

As indicated by the ruling in Schrems II, the use of standard contractual clauses may require additional protective measures as a complement. Therefore, an analysis of the legislation in the relevant third country needs to be conducted.

However, the IMY believes that the analysis already conducted by the Court of Justice of the European Union in the ruling of Schrems II, which pertains to similar circumstances, is relevant and current, and that it can thus serve as the basis for the assessment in this case without any further analysis of the

legal situation in the USA needing to be made.

Google LLC, as the importer of the data to the USA, should be classified as a provider of electronic communication services in the sense referred to in 50 US Code § 1881 (b)(4). Google is therefore subject to surveillance by US intelligence services in accordance with 50 US § 1881a ("702 FISA") and is thus obligated to provide the US government with personal data when 702 FISA is invoked.

18 EDPB's Recommendations 01/2020, point 128; IMY's translation.

19 EDPB's Recommendations 01/2020, point 77; IMY's translation.

20 EDPB's Recommendations 01/2020, point 79; IMY's translation.

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The Court of Justice of the European Union stated in the ruling *Schrems II* that the American surveillance programs based on 702 FISA, Executive Order 12333 (hereinafter "E.O. 12333"), and Presidential Policy Directive 28 (hereinafter "PPD-28") in American legislation do not meet the minimum requirements that apply under Union law according to the principle of proportionality. This means that the surveillance programs based on these provisions cannot be considered limited to what is strictly necessary. The Court also noted that the surveillance programs do not provide the data subjects with rights that can be asserted against American authorities in court, which means that these individuals do not have the right to an effective remedy.²¹

In this context, IMY notes that the use of the European Commission's standard contractual clauses alone is not sufficient to achieve an acceptable level of protection for the transferred personal data.

2.4.2.3 Additional protective measures implemented by Google and Coop

The next question is whether Coop has taken sufficient additional protective measures. As the data controller and exporter of the personal data, Coop is obliged to ensure compliance with the rules of the General Data Protection Regulation. This responsibility includes, among other things, assessing in each individual case what additional protective measures should be used and to what extent, including evaluating whether the measures taken by the recipient (Google) and the exporter (Coop) together are sufficient to achieve an acceptable level of protection.

2.4.2.3.1 Google's additional protective measures

Google LLC, as the importer of personal data, has taken contractual, organizational, and technical measures to complement the standard contractual clauses. Google described these measures in a statement on April 9, 2021.

The question is whether the additional protective measures taken by the company and Google LLC are effective, in other words, whether they prevent American intelligence agencies from accessing the transferred personal data.

Regarding the contractual and organizational measures, it can be noted that neither information to users of the Tool (such as Coop),²² the publication of a transparency report, nor a publicly available "policy for handling government requests" prevents or reduces the capabilities of American intelligence agencies to access personal data. Furthermore, it is unclear how Google LLC's "thorough examination of each request" regarding the "legality" of such requests is effective as an additional protective measure, considering that even lawful legal requests from American intelligence agencies, according to the Court of Justice of the European Union, do not comply with the requirements of EU data protection regulations.

Regarding the technical measures taken, it can be noted that neither Google LLC nor the company has clarified how the described measures – such as protection of communication between Google's services, protection of data during transfer between data centers, protection of communication between users and websites, or "physical security" – prevent or reduce the capabilities of American intelligence agencies to gain access to the data under the American legal framework.

²¹ Paragraphs 184 and 192. Paragraph 259 and subsequent.

22 Regardless of whether such a notification would even be permitted under American law.

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Regarding encryption technology – e.g., for so-called "data at rest" in data centers, as mentioned by Google LLC as a technical measure – Google LLC, as the importer of personal data, still has an obligation to grant access to or transfer imported personal data that Google LLC controls, including any encryption keys required to make the data intelligible.²³ Thus, such a technical measure cannot be considered effective as long as Google LLC has the ability to access the personal data in plaintext. Concerning what Google LLC has stated about "to the extent that information for measurement in Google Analytics transferred by website owners constitutes personal data, it may be considered pseudonymized," it can be noted that universally unique identifiers (UUID) are not covered by the concept of pseudonymization in Article 4.5 of the Data Protection Regulation. Pseudonymization can be a privacy-enhancing technique, but the unique identifiers have, as described above, the specific purpose of distinguishing users and not functioning as protection. Furthermore, individuals can be identified through what has been stated above regarding the possibility of combining unique identifiers and other data (e.g., metadata from browsers or devices and the IP address) and the ability to link such information to a Google account for logged-in users.

Regarding Google's action of "anonymizing IP addresses" in the form of truncation²⁴, it is not clear from Google's response whether this action occurs before the transfer or if the entire IP address is transferred to the USA and truncated only after the transfer to the USA. From a technical perspective, it has thus not been demonstrated that there is no potential access to the entire IP address before the last octet is truncated.

In this context, IMY concludes that the additional protective measures taken by Google are not effective, as they do not prevent U.S. intelligence agencies from accessing personal data or render such access ineffective.

2.4.2.3.2 Coop's Own Additional Protective Measures

Coop has stated that the company has taken additional protective measures beyond those implemented by Google (truncation²⁵ of the last octet when measured data is transferred). According to the company, these consist of a so-called server-side container, which has been established to increase control over how data is sent to the Tool and means that only one and the same generic IP address is transferred to the Tool, regardless of what the registered unique IP address is.

However, IMY finds that these measures are insufficient for the following reasons.

IMY notes that Coop also transfers a number of other unique identifiers (clientId, userID, gclid, and dclid as well as transactionID),²⁶ the purpose of which is to distinguish the complainant at Google. The so-called server-side container means that the IP number, after the IP address collected by Coop (but before the transfer to Google), is replaced with a generic IP number that is the same for all visitors to Coop's website.

²³ See EDPB's Recommendations 01/2020, point 81.

²⁴ Truncation of the IP address means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255).

²⁵ Truncation of the IP address means that asterisks or zeros replace other digits in the last octets (the last digits in an IP address, a number between 0 and 255), which in itself can only be one of 256 options. The effect of this measure means that it is still possible to distinguish the IP address from the other IP addresses (255 options), as the IP address can be linked to other transferred data (e.g., information about the device and the time of the visit) to a third country. Masking the last octet (Google's measure) is not an additional privacy-enhancing measure compared to the server-side container, as this measure only masks the last octet of an already anonymized IP address.

The unique identifiers (clientID, userID, gclid, and dclid as well as transactionID) are also transmitted via a so-called server-side container (and IP anonymization), but are transmitted in unchanged form, i.e., in clear text, which means that this information can be distinguished and thus linked together. IMY notes that, since it is possible to link the transmitted data to other data that is also transmitted to Google LLC, the additional protective measures are not sufficient.

To ensure effective protective measures, all unique identifiers should instead be transmitted in altered form (i.e., not in clear text), which means that the transmitted data cannot be linked together.

In this context, IMY concludes that the additional measures taken by the company, beyond the additional measures taken by Google, are also not sufficiently effective to prevent U.S. intelligence agencies from accessing personal data or rendering such access ineffective.

2.4.2.3.3 Conclusion of the Swedish Authority for Privacy Protection

In light of the above, IMY finds that Coop has not demonstrated that any of the tools mentioned in Chapter V of the General Data Protection Regulation can be used to transfer personal data about visitors to its website—particularly unique identifiers, IP addresses, browser data, and metadata—to Google LLC in the USA.

By transferring this data, Coop therefore undermines the level of protection for personal data for data subjects guaranteed in Article 44 of the General Data Protection Regulation. IMY therefore concludes that Coop Sverige AB is in violation of Article 44 of the General Data Protection Regulation.

3 Choice of Intervention

3.1 Legal Regulation

IMY has a number of corrective powers available in the event of violations of the General Data Protection Regulation according to Article 58.2 a–j of the General Data Protection Regulation, including reprimands, orders, and administrative fines.

IMY shall impose administrative fines in addition to or instead of other corrective measures referred to in Article 58.2, depending on the circumstances of each individual case.

Each supervisory authority shall ensure that the imposition of administrative fines in each individual case is effective, proportionate, and dissuasive. This is stated in Article 83.1 of the General Data Protection Regulation.

Article 83.2 of the General Data Protection Regulation specifies the factors to be considered in determining whether an administrative fine should be imposed, as well as in determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand according to Article 58.2 b of the Regulation. Consideration should be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement, as well as previous relevant violations.

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According to Article 83.5 c of the General Data Protection Regulation, in the event of a violation of Article 44 in accordance with Article 83.2, administrative fines of up to 20 million EUR or, if it concerns a company, up to 4% of the total global annual turnover of the previous financial year shall be imposed, depending on which value is higher.

3.2 Should a fine be imposed?

The Swedish Data Protection Authority (IMY) has found above that the transfers of personal data to the USA that occur via the Google Analytics tool and for which Coop is responsible violate Article 44 of the General Data Protection Regulation. Violations of that provision can, as stated above, lead to fines.

In this particular case, it is a serious violation that should normally result in a fine.

In assessing whether a fine should be imposed in this case, it should be taken into account as an aggravating factor that the violation has occurred because Coop has transferred a large amount of personal data to a third country where the data cannot be guaranteed the level of protection provided in the EU/EEA. The processing has occurred systematically and over a longer period. After the Court of Justice of the European Union invalidated the Commission's decision on an adequate level of protection in the USA on July 16, 2020, the conditions for transferring personal data to the USA changed. It has now been approximately 3 years since the judgment was issued, and the European Data Protection Board (EDPB) has during that time provided recommendations on the consequences of the judgment for public consultation on November 10, 2020, and in final form on June 18, 2021.

As a mitigating factor, the special situation that has arisen after the judgment and the interpretation of the EDPB's recommendations should be taken into account, where there has been a gap after the transfer tool to the USA according to the Commission's previous decision was invalidated by the Court of Justice of the European Union. It should also be particularly noted that the investigation shows that Coop has conducted a lifecycle analysis of personal data in the Tool. Coop has also taken measures such as a so-called server-side container, which has been established to increase control over how data is sent to the Tool and which means that only one and the same generic IP address is transferred to the Tool, regardless of what the registered unique IP address is. The company has also activated Google's measure "anonymization of IP addresses" through truncation. Coop has thus taken extensive technical measures to try to limit the risks for the data subjects and to remedy the deficiencies. Coop has thereby also believed that they have succeeded, even though the measures have now proven to be insufficiently effective in preventing US intelligence services from accessing the data or making such access ineffective.

In a balanced assessment, IMY finds that there is reason in this case to refrain from imposing a fine on Coop for the established violation and to settle for an order to remedy the deficiency.

3.3 Other interventions

The investigation shows that the protective measures for the transfer of personal data invoked by Coop cannot support the transfer according to Chapter V of the General Data Protection Regulation. The transfer thus constitutes a violation of the regulation. To ensure that the violation ceases, Coop shall be ordered under Article 58.2 d of the General Data Protection Regulation to ensure that the company's processing of personal data within the framework of the use of the Google Analytics tool complies with Article 44 and other provisions of Chapter V. This shall particularly be done by Coop ceasing to use the version of the Google Analytics tool that was used on August 14, 2020, unless sufficient protective measures have been taken. The measures must be implemented no later than one month after this decision has become final.

This decision has been made by the Director General Lena Lindgren Schelin after presentation by the lawyer Sandra Arvidsson. In the final processing, the legal manager David Törngren, unit manager Catharina Fernquist, and IT and information security specialist Mats Juhlén have also participated.

Lena Lindgren Schelin, 2023-06-30 (This is an electronic signature)

4 Appeal Reference

4.1 How to appeal

If you wish to appeal the decision, you should write to the Swedish Data Protection Authority. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by the Swedish Data Protection Authority no later than three weeks from the day you received notice of the decision. If the appeal has been submitted in a timely manner, the Swedish Data Protection Authority will forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to the Swedish Data Protection Authority if it does not contain any privacy-sensitive personal data or information that may be subject to confidentiality. The authority's

contact details are provided on the first page of the decision.